

APEX INDUSTRIAL SUPPLY
1200 Industrial Parkway, Suite 400 | Columbus, OH 43215
Tel: (614) 555-0100 | www.apexindustrial.com

MASTER SUPPLY AGREEMENT
Contract ID: CTR-2024-1002

1. PARTIES

This Master Supply Agreement ('Agreement') is entered into as of May 07, 2024 between Apex Industrial Supply, Inc. ('Supplier'), a Delaware corporation with principal offices at 1200 Industrial Parkway, Suite 400, Columbus, OH 43215, and Menards ('Customer'), for the supply of industrial products as described herein.

Customer Type: Retail
Customer Region: South
Customer Contact: James Mitchell, Procurement Manager

2. TERM AND EFFECTIVE DATE

This Agreement shall be effective from May 07, 2024 through May 07, 2026, a period of 2 years. Either party may terminate this Agreement with ninety (90) days written notice. Upon expiration, the Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration date.

3. PRODUCTS AND PRICING

This Agreement covers products in the following categories: Safety, Abrasives, Tools.

Pricing shall be in accordance with the following volume-based tier structure:

Tier 1 (1-99 units): \$43.06 per unit
Tier 2 (100-499 units): \$39.62 per unit
Tier 3 (500+ units): \$36.60 per unit

Prices are subject to the annual price adjustment provisions described in Section 6. All prices are FOB Supplier's warehouse unless otherwise specified.

4. TRADE TERMS

Trade Type: Slotting Fee
Trade Value: \$54,000.00
Payment Schedule: Quarterly
Payment Terms: Net 30

5. RETAIL-SPECIFIC PROVISIONS

Slotting and Placement: Supplier agrees to pay \$8,000.00 for catalog/shelf placement across Customer's Midwest locations for the contract term.

Promotional Windows: Customer shall provide Supplier with the annual circular/flyer calendar by December 1st of the preceding year. Supplier's promotional submissions are due 8 weeks prior to the circular print date.

Holiday Blackout: Supplier-initiated promotions are not accepted during Memorial Day, July 4th, and Labor Day promotional windows, during which Customer's own promotions take priority.

6. GENERAL TERMS

Confidentiality: Both parties agree to maintain confidentiality of pricing, trade terms, and volume data disclosed under this Agreement.

Force Majeure: Neither party shall be liable for delays caused by circumstances beyond reasonable control.

Governing Law: This Agreement shall be governed by the laws of the State of Ohio.

Entire Agreement: This Agreement, together with all Exhibits, constitutes the entire understanding between the parties.

APEX INDUSTRIAL SUPPLY, INC. MENARDS

Authorized Signature Authorized Signature

Date: May 07, 2024 Date: May 07, 2024